

evidence cited therein.) But, when asked at the April 22, 2021, PMQ deposition to testify as to this personal knowledge, Ms. Hawkins was instructed not to answer. (See, e.g., Shepardson Decl. at Exh. 3, 22:16-23:3.)

“It is generally improper...for counsel to instruct a witness not to answer on grounds other than privilege, privacy, trade secrets, or other matters statutorily or constitutionally exempt from discovery.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) § 8:734.2, p. 8E-122 citing *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013-15.) Defendant presents no authority suggesting any statutory or constitutional grounds for instructing Ms. Hawkins to not answer questions regarding her personal knowledge. Neither does Defendant present authority otherwise suggesting that the instruction not to answer was proper. Although it seems quite likely that Ms. Hawkins’ PMQ testimony concerning her personal knowledge will largely (if not wholly) mirror her earlier percipient testimony, she is produced in a separate role as PMQ and plaintiff is entitled to have her provide her percipient testimony in this role, especially upon confirmation that her percipient knowledge is the County’s only available information.

Based on the foregoing, Plaintiff’s motion, as reasonably construed by the Court is GRANTED. Defendant is directed to produce Ms. Hawkins as PMQ and allow her to testify regarding her personal knowledge on the topics identified in the deposition notice.

Plaintiff’s request for sanctions is DENIED. The Court finds that in light of the nature of Plaintiff’s questioning of Ms. Hawkins at the April 22, 2021, and the understandable confusion regarding the nature and scope of Plaintiff’s arguments through meet and confer and the present motion, Defendant acted with substantial enough justification in opposing the motion that sanctions are not warranted. (See Code Civ. Proc., § 2025.480 (j).)

To the extent Plaintiff seeks other relief through the motion, it is denied in all such respects based on lack of clarity.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

¹For ease of reference the term “Motion” as used herein refers to the document, filed on May 28, 2021, by Plaintiff in this action, and titled “PLAINTIFF HOWARD TODD BARR’S NOTICE OF MOTION TO COMPEL DEFENDANT’S [sic] PERSON MOST QUALIFIED TO ANSWER PMQ TOPIC QUESTIONS; AND SUPPORTING AND [sic] MEMORANDUM ; RESPECTFULLY REQUEST FROM DEFENDANT COUNTY OF CALAVERAS REIMBURSEMENT FOR PARTIAL COST OF MOTION OF \$2,400.”

9:00 AM 19CV43844 Motion to Compel Def Vieira to provide further responses to Form Interrogatories, etc. and Comply with Agreements.... 01/30/2019 08/25/2021 Case Management Conference

Ptff/Pet: Bonavera, Angelo G.; Bonavera, Anthony J.; Cloud, Jeremiah J.; Cloud, Zechariah C. Atty: Carpenter, Zuckerman & Rowley Llp
Def/Res: California Department of Transportation; Pacific Bell Telephone Co.; Vieira, Victor R. Atty: Keowen, James Christopher; Tyson & Mendes Llp

TENTATIVE RULING: Plaintiff Jeremiah J. Cloud moves, pursuant to Code of Civil Procedure sections 2030.300, 2031.310, and 2031.320, for an ordering requiring Defendant Victor Vieira to: (1) provide further, complete, verified, objection-free responses to Form Interrogatories Nos. 7.1 through 7.3; (2) provide further, complete, verified, objection-free responses to Special Interrogatories Nos. 1 and 15; and (3) provide further, complete, verified objection-free responses and documents to Requests for Production, Set One, Nos. 1, 6, 7, 9, 11-14, 16, 19-20, 20 [sic] 22-23, and 25-27. Plaintiff also requests sanctions, pursuant to Code of Civil Procedure sections 2030.30, and 2031.310, against Defendant Vieira and his counsel of record in the amount of \$7,392.00.

A. Plaintiff's Motion is Granted in Part as to Interrogatories

For interrogatories, the propounding party has the burden of filing a motion to compel if it finds the answers received unsatisfactory, but "the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

The Court rules on the motion as to each of the subject interrogatories as follows.

Form Interrogatory No. 7.1. DENIED. The Court reasonably interprets the Interrogatory as seeking information relating to loss or damage to a vehicle for which the responding party seeks to hold another party to the litigation liable. Defendant Vieira responded that he "is not making any claim for vehicle or other property damage in this case." (Reply Separate Statement (RSS) at 2:14-16.) As such, the Interrogatory, by its terms, requires no further response. (See RSS at 2:4-5 ["...if so, for each item of property..."].)

Form Interrogatory Nos. 7.2 and 7.3. DENIED. Defendant Vieira is not obligated to produce information in response to either interrogatory because he did not refer to any item of property (relating to which he seeks to obtain damages through the present litigation) in response to Form Interrogatory No. 7.1.

Special Interrogatory No. 1. DENIED. The Court finds that Defendant Vieira has carried his burden of justifying his objection to the Interrogatory on the ground that it is overly broad and seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence. (See Opposition at 8:24-9:26 and evidence and authority cited therein.) While information relating to specific types of moving violations may be relevant, Defendant carries his burden of showing that the request for each and every moving violation Defendant has been issued in the past 20 years is over-broad.

Special Interrogatory No. 15. GRANTED. Defendant Vieira's response is sufficient to describe conversations that he had with persons involved in preparing the subject accident report. However, Plaintiff is entitled to an answer that unequivocally states whether these are the only individuals Defendant Vieira spoke with at the subject scene, and if not, an identification of what other individuals he spoke with and a description of such conversations.

B. Plaintiff's Motion is Granted in Part as to His Requests for Production

The burden on the propounding party is higher in compelling responses to production of documents than in compelling responses to interrogatories. The motion to compel must "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc. §2031.310 (b)(1).) "[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance." (Kirkland v. Super. Ct. (2002) 95 Cal.App.4th, 92 98.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement." (Glenfed Development Corp. v. Super. Ct. (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See Kirkland v. Super. Ct., supra, at 98.)

The Court rules on the motion as to each of the subject requests as follows:

Generally: The Court is unable to determine, from the record, whether Defendant's responses are all verified. To the extent that they are not, the motion is GRANTED for the purposes of obtaining a verified response.

Request for Production No. 1. The Court declines Plaintiff's invitation to order Defendant to produce a response which does not refer to the protective order. (See RSS at 11:21-23.) The issue of whether documents produced in response to this request are subject to the protective order is not properly before the Court on this motion to compel.

Request for Production Nos. 6, 7, 9, 23, 25, 26. The Court is unable to determine, from the record, whether Defendant's responses are all verified. To the extent that they are not, the motion is GRANTED for the purposes of obtaining a verified response.

Request for Production No. 11. DENIED. The Court finds the request overly broad and not limited to documents that are relevant to the action. While certain documents relating to certain types of auto-related claims may be relevant, Plaintiff's request for all such documents relating to any auto-related claim is overbroad.

Request for Production No. 12. DENIED. The Court finds the request overly broad and not limited to documents that are relevant to the action. While information relating to specific types of moving violations may be relevant, Plaintiff fails to make a factual showing that all documents relating to every moving violation Defendant has been issued are relevant.

Request for Production No. 13. GRANTED. The documents requested are relevant to the issues involved in the litigation.

Request for Production No. 14. GRANTED IN PART. The Court finds Plaintiff has made a factual showing of relevance as to all documents that relate to Defendant Vieira's level of pre-incident training. (See RSS at 19:14-15.) The motion is DENIED as to this request in all other respects. First, documents and electronically stored information related to any action Vieira's employer took as a result of the subject incident is not limited to documents relating to Vieira; Vieira's employer is a party to the action and Plaintiff should seek such documents from that party to allow assertion of any appropriate objections. Second, Plaintiff fails to make a factual showing that other documents responsive to this request are relevant to the action. Finally, to the extent that Plaintiff seeks information that is part of Defendant Vieira's employment record, the Court finds that his privacy rights as to those records outweigh the need for discovery as to documents the relevance of which Plaintiff has failed to show. (See *Shaffer v. Super. Ct.* (1995) 33 Cal.App.4th 993, 999.)

Request for Production No. 16. GRANTED IN PART. The Court finds that Plaintiff has made a factual showing of relevance as to any receipts for any purchases made the day of the incident, and as to any work orders, and time and attendance records for the day in question. The motion is DENIED as to this request in all other respects. The Court finds the phrase, "activities YOU claim YOU engaged in on the date of the SUBJECT INCIDENT" vague and ambiguous and not subject to reasonable interpretation. Moreover, Plaintiff fails to make a factual showing that any other documents described in the request are relevant to the action.

Request for Production No. 19. GRANTED IN PART. The Court finds that Plaintiff has made a factual showing of relevance as to all documents that relate to Defendant Vieira's level of pre-incident training. (See RSS at 23:26-24:2.) The motion is DENIED as to this request in all other respects. Plaintiff fails to make a factual showing that all other documents responsive to this request are relevant to the action. Moreover, all such documents are part of Defendant Vieira's employment record, and the Court finds that his privacy rights as to those records outweigh the need for discovery as to documents the relevance of which Plaintiff has failed to show. Additionally, this request is similar to Request 16 so the analysis also applies, however the Court notes this request is also significantly broader raising even more significant relevance and privacy concerns. (See *Shaffer v. Super. Ct.* (1995) 33 Cal.App.4th 993, 999.)

Request for Production No. 20. DENIED. Plaintiff seeks Defendant Vieira's application with Defendant Pacific Bell Telephone Company on the single grounds that it "may show Vieira's level of pre-incident training and experience." (RSS at 25:20, 26:24-28.) The Court finds that while Defendant Vieira's application may disclose his pre-incident training and experience, that information can be obtained by other means, including through deposition or by interrogatory, and the application is all but certain to contain private information that is not relevant to the action. (See *Shaffer v. Super. Ct.* (1995) 33 Cal.App.4th 993, 999.)

Request for Production No. 20 [sic]. DENIED. Plaintiff concedes that documents have been produced in response to this Request. (See RSS at 29:19.) Plaintiff's request that the Court require Defendant Pacific Bell Telephone Company to provide further response is denied as this relief was not identified in the Notice of Motion. (See Code Civ. Proc. §1010 ["the notice of a motion, other than for a new trial, must state...the grounds upon which it will be made"]; see also Rules of Court, Rule 3.1110 ["[a] notice of motion must

state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order”].)

Request for Production No. 22. GRANTED IN PART. The Court finds that Plaintiff has made a factual showing of relevance as to all documents that relate to Defendant Vieira’s level of pre-incident training. (See RSS at 30:14-17.) The motion is DENIED as to this request in all other respects. Plaintiff fails to make a factual showing that all other documents responsive to this request are relevant to the action. Moreover, all such documents are part of Defendant Vieira’s employment record, and the Court finds that his privacy rights as to those records outweigh the need for discovery as to documents the relevance of which Plaintiff has failed to show. (See *Shaffer v. Super. Ct.* (1995) 33 Cal.App.4th 993, 999.) The Court also finds that the burden that Plaintiff seeks to place on Defendant, of redacting all “sensitive personal/private information” is undue and improper in the context of Plaintiff’s failure to make a factual showing of the relevance of such documents (outside of the category identified herein above).

Request for Production No. 27. GRANTED. The Court finds that the documents requested are relevant to the action. Defendant’s response indicates that he will produce documents in response to the Request. Plaintiff indicates no such documents have been produced. The Court can find nothing in Defendant’s opposition papers addressing this Request or updating that the documents have actually been produced.

C. The Parties’ Respective Requests for Sanctions are Denied

The parties each request sanctions against the other. Each of the statutes on which the parties rely provide for the imposition of sanctions “against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response....” (Code Civ. Proc., § 2030.300, subd. (d); see also Code Civ. Proc., § 2031.310, subd. (h).) Based on the mixed nature of the Court’s ruling, the Court finds neither that Plaintiff unsuccessfully made the motion, nor that Defendant Vieira unsuccessfully opposed it. As a result, each of the parties’ requests for sanctions is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.